

26. **Agent not constructive trustee.**—An *agent* employed by a trustee is accountable in general to his principal only, and cannot as a *constructive trustee* be made responsible to the *cestuis que trust* (*e*); [and the directors of a company bound by a trust will not be personally liable for breaches of trust committed by the company (*f*).] But of course the rule does *not apply where the agent has taken an [*192] actively *fraudulent* part, and so made himself a principal (*a*).

27. **Title-deeds.**—Under the head of constructive trusts may be mentioned the case of a settlement left in the hands of a person taking only a partial benefit under it as a tenant for life, in which case the other persons interested and claiming under the same title have a right to the fair use of the document, and the holder is deemed a trustee for them, and is bound to produce it at their request (*b*). And in one case it was ruled that if a person sell part of his estate and retain the title-deeds, though he may not have given a covenant for production, he is compellable to produce them as common property to the purchaser (*c*). But in *Barclay v. Raine* (*d*), Sir J. Leach seems to have doubted whether, if part be sold and the title-deeds delivered to the *purchaser*, a future purchaser from him could be ordered, where there was no

(*e*) *Keane v. Robarts*, 4 Mad. 332; see 356, 359; *Davis v. Spurling*, 1 R. & M. 54; S. C. Taml. 199; *Crisp v. Spranger*, Nels. 109; *Saville v. Tancred*, 3 Sw. 141, note; *Nickolson v. Knowles*, 5 Mad. 47; *Myler v. Fitzpatrick*, 6 Mad. 360; *Fyler v. Fyler*, 3 Beav. 550; *Maw v. Pearson*, 28 Beav. 196; *Lockwood v. Abdy*, 14 Sim. 437; *Archer v. Lavender*, 9 I. R. Eq. 225, *per cur.*; [*Wilson v. Lord Bury*, 5 Q. B. D. 518; *Re Spencer*, 51 L. J. N. S. Ch. 271;] and see *Ex parte Burton*, 3 Mont. D. & De G. 364; *Re Bunting*, 2 Ad. & Ell. 467; *Williams v. Williams*, 17 Ch. D. 437, where attention is drawn to the distinction between notice to raise a constructive trust, and notice to an actual trustee. [(*f*) *Wilson v. Lord Bury*, 5 Q. B. D. 518.]

(*a*) *Hardy v. Caley*, 33 Beav. 365; *Fyler v. Fyler*, 3 Beav. 550; *Portlock v. Gardner*, 1 Hare, 606; *Ex parte Woodin*, 3 Mont. D. & De G. 399; *Attorney-General v. Corporation of Leicester*, 7 Beav. 176; *Bodenham v. Hoskyns*, 2 De G. M. & G. 903; *Pannell v. Hurley*, 2 Coll. 241; *Alleyne v. Darcy*, 4 Ir. Ch. Rep. 199; and see S. C. 5 Ir. Ch. Rep. 56; *Bridgman v. Gill*, 24 Beav. 382; *Archer v. Lavender*, 9 I. R. Eq. 220.

(*b*) *Banbury v. Briscoe*, 2 Ch. Ca. 42; *Harrison v. Coppard*, 2 Cox, 318; *Shore v. Collett*, Coop. 234; *Davis v. Dysart*, 20 Beav. 405; *Curnick v. Tucker*, 17 L. R. Eq. 320.

(*c*) *Fain v. Ayers*, 2 S. & S. 533.

(*d*) 1 S. & S. 449; see 7 Byth. by *Jarm.* 375.